



File No.: EXP202213704

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on November 15, 2022. The complaint is directed against HOTEL TURIA, S.A. with NIF A46388245 (hereinafter, the respondent). The reasons for the complaint are as follows:

The claimant states that on November 5, 2022, they requested via email access to the recordings from the video surveillance system of the parking lot where their vehicle was parked, between November 2 and 5, 2022, as well as the limitation of its processing for preservation purposes. On November 10, 2022, they received a response indicating that they did not retain images from that period and contradicted themselves by stating that the cameras are only for viewing and surveillance, although in the same text they mentioned that sometimes the recordings are made available to the court, which indicates that there would indeed be a processing of image preservation. The claimant believes that their request has not been adequately addressed.

Along with the notification, an email is provided in which they exercise their requests for access and limitation and a copy of the response received.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received by the responsible party on January 2, 2023, as noted in the acknowledgment of receipt in the file.

On January 12, 2023, and February 2, 2023, a response was received indicating that:

"the retention period for the images is 24/48 hours, so they could not address the claimant's request."

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Furthermore, due to human error, the person who responded to the request of the claimant was not the data protection officer, which means that their response may not have been aligned with the subject matter."

In the document dated 02/02/23, this Agency is informed "that to avoid further incidents, they have decided to hire the services of a consultancy expert in data protection, which, after conducting a study of the deficiencies in the organization of the respondent, has developed a work plan with different phases: implementation of a consent request protocol and compliance with the obligation to inform in accordance with data protection regulations; implementation of a protocol for addressing data protection rights that includes a specific channel for processing and responding; establishment of data protection awareness among their employees through courses and training on the subject; adaptation of the corporate website to the requirements of data protection regulations; inclusion of clauses in contracts signed with third parties who have access to customer data where the respondent acts as a data processor; implementation of privacy policies for all groups whose data is subject to processing; implementation of a data retention policy adjusted to the needs of the organization; preparation of the record of processing activities; signing of confidentiality clauses with employees and other groups with access to data in accordance with data protection regulations; review and implementation of

appropriate technical and organizational measures in line with data protection principles that ensure an appropriate level of security for the various data processing activities; conducting risk analyses on the processing carried out by the entity; implementation of the Protocol for action in the event of security incidents affecting personal data, with the establishment of a Security Committee; implementation of device usage policies and a manual of security measures disseminated within the organization."

THIRD: On February 15, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing, and communication regarding this was sent to the claimant.

FOURTH: On March 7, 2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. The resolution was duly notified to the appellant on that date, as evidenced in the file.

FIFTH: On April 3, 2023, the claimant filed an optional appeal for reconsideration against the resolution to archive their complaint and stated what was pertinent to their rights. In particular, they indicated that they requested access to the surveillance images from November 2 to 5 on November 5, 2022. The response five days later was what led to the deletion of the images, as the respondent retained them for 24/48 hours. Therefore, they consider that there was a violation of their rights due to obstruction. They also believe that the action of the AEPD was not in accordance with the law for not providing them with the response from the respondent.

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SIXTH: On July 17, 2023, the appeal filed by the claimant was sent to HOTEL TURIA in accordance with the provisions of Article 118.1 of the LPACAP, for the purpose of allowing them to make allegations and present the documents and evidence they deemed appropriate, which was verified by a response letter dated July 28, 2023. In their letter, the responding party reiterates the allegations made previously and informs that measures for efficiency have been adopted in similar cases to the one claimed, such as extending the retention period of surveillance images to 10 days, updating the response protocol regarding the exercise of rights by the interested parties, and contracting training services in personal data protection to properly train the entity's employees.

SEVENTH: On September 4, 2023, the Director of the Spanish Agency for Data Protection resolved to uphold the appeal for reconsideration filed by the claimant against the resolution of this Agency dated March 7, 2023, which agreed to archive the complaint concerning HOTEL TURIA, so that its processing may continue.

EIGHTH: On May 10, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the responding party for the alleged infringement of Articles 15 and 18 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5 of the GDPR.

NINTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP, was received on May 13, 2024, as evidenced by the acknowledgment of receipt in the file.

TENTH: On May 20, 2024, a letter of allegations was received from the responding party in which, in summary, the following considerations are made:

It begins by reiterating what was previously alleged regarding the attention to the claimant's rights within the established timeframe, even though their response implied that the images were preserved by indicating that, on occasions, they were made available to the courts.

They explain again that it was impossible to attend to the right of access since the images had already been deleted when the request was made, as they now assert that they are retained for a period of 72 hours from their capture, unless required by the State Security Forces or Courts.

Next, they refer to the fact that a human error occurred in the response, as the person who managed the right of access was not the designated individual for that purpose, and this was not in accordance with the requirements of data protection regulations.

They also state that they have proceeded to extend the retention period of the images to ensure the

protection of public freedoms and fundamental rights of individuals and compliance with data protection regulations.

In their third allegation, they assert that they had measures in place to ensure the security of information prior to the claimed events, as at the beginning of 2019, they contracted the services of a data protection consultancy that provided a series of documentation and protocols that were duly implemented by the responding party. Additionally, staff were trained in data protection matters. Finally, they emphasize their commitment to personal data protection and state that they have followed a process of continuous updating of protocols and policies for responding to the exercise of rights, responses to security breaches, security measures, legal texts on the website, retention of personal data, confidentiality documents (employees, suppliers, etc.), as well as all types of legal clauses, authorizations, informative posters, etc.

They conclude their letter requesting the acceptance of their allegations and the consequent archiving of the present procedure.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: On November 5, 2022, the claimant exercised, via email, the right of access and limitation regarding the images recorded by a surveillance camera located in a parking lot of the responding party.

SECOND: On November 10, 2022, in response to the aforementioned request, the responding party claims to be unable to fulfill the request as the images had been deleted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Response to the Allegations

In response to the written allegations of the responding party, we proceed, first of all, to address them. Regarding their first allegation concerning the claims presented during the transfer of the complaint, we can only reiterate what has already been stated regarding the impossibility of considering that this implies a non-violation of the rights of access and limitation exercised. The regulations are clear in this regard: upon receiving a request for the exercise of rights, the responsible entity must evaluate it individually to determine its specific content, taking into account that the obligation to facilitate the exercise of the rights of the interested parties, as provided in Article 12.2 of the GDPR, entails that the responsible party grants the broadest possible effect to the exercised right.

This evaluation must first establish the personal data referred to in the request. As a rule, it should be understood that the request refers to all data, unless the interested party clearly specifies otherwise, and this limitation, included in the request, does not raise doubts about the true intention of the interested party that would require the responsible party to interpret it.

In determining the subject matter referred to in the request, the context in which it occurs, the specific circumstances of the case, and any information that the interested party includes in it may be considered. The aim is for the evaluation carried out by the responsible party regarding the content of

the request for the exercise of rights to be clear and unequivocal, always keeping in mind that an average citizen does not know the regulations in detail nor can adequately assess them, given their complexity.

If the request is expressed in very general terms or its subject matter cannot be determined for any reason, the responsible party may not apply limits or restrictions to the exercised right and will be obliged, before responding, to request additional information from the interested party to specify the information or treatments referred to in the request. The evaluation carried out by the responsible entity must always reflect the situation at the time it received the request, thus ensuring that the response aligns with the information available at that time.

Regarding the response time, the responsible party is also obliged to establish procedures that enable requests to be addressed without undue delay, adapting these procedures to the circumstances of the processing. When data is retained for a short period, the attention to rights must occur before the data is deleted, preventing this deletion from taking place during the processing of the request. In these cases, if it is necessary to request additional information from the interested party regarding the subject of their complaint, the scheduled deletion of the data must be taken into account, and appropriate measures must be adopted to ensure that it does not occur before addressing the right. Thus, if it is not possible to send the required response to the interested party before the scheduled deletion of the personal data, the data must be retained for longer.

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time established or its recovery should have been anticipated, solely for the purpose in both cases of addressing the right.

That is to say, since the claimant had exercised their rights of access and limitation regarding the images from the parking cameras, the images should have been, at the very least, preserved in order to determine whether or not the requests should be addressed during the time necessary for that purpose. This issue, in the present case, did not occur and resulted in the inability to address the request made.

In short, it cannot be considered that the responding party attended to the right to limit the processing exercised by the claimant, as there was no adequate response to the request for the preservation of the recordings in question, which, moreover, should have been preserved in light of the request made. The same can be said for the right of access, which was also not attended to, as the images from the cameras were deleted.

Furthermore, this party finds it noteworthy that up to three different preservation periods for the images have been communicated by the responding party. Indeed, although the claimant was initially informed that the images were not preserved, it was later indicated to this agency that they were preserved for a period of 24/48 hours, only to finally state in their written allegations that the preservation period of 72 hours has been extended to 10 days.

In this regard, it is recalled what is established in Article 22 of the LOPDGDD, particularly its third paragraph, according to which “Data shall be deleted within a maximum period of one month from its capture, unless they must be retained to prove the commission of acts that violate the integrity of persons, property, or facilities. In such cases, the images must be made available to the competent authority within a maximum period of seventy-two hours from the time knowledge of the existence of the recording is obtained.”

That is to say, the applicable regulation establishes the obligation to delete surveillance images within a maximum period of one month, without prejudice to the exceptions determined therein.

On the other hand, regarding the information provided by the responding party concerning the measures it has implemented in order to comply with data protection regulations and the special importance it places on ensuring the protection of personal data, it is considered that no further comments are warranted.

III

Right of access of the interested party

The rights of access, rectification, deletion, opposition, right to limit processing, and right to portability of individuals in matters of personal data protection are regulated in Articles 15 to 22 of the GDPR, as well as in Articles 13 to 18 of the LOPDGDD.

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Regarding the right of data subjects to access their personal data "concerning them" from the data controller, Articles 12 and 15 of the GDPR, as well as Articles 12 and 13 of the LOPDGDD, are of special application, all of which must be interpreted within the framework established in Recitals 59 to 64 of the GDPR.

Article 15 of the GDPR, which regulates the right of access of the data subject, establishes the following:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data and to the following information:

- a. the purposes of the processing;
 - b. the categories of personal data concerned;
 - c. the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
 - d. where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
 - e. the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
 - f. the right to lodge a complaint with a supervisory authority;
 - g. when the personal data have not been obtained from the data subject, any available information as to their source;
 - h. the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.
2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.
3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.
4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others."

For its part, Article 13 of the LOPDGDD establishes certain guidelines for considering this right to be fulfilled by the data controller in certain cases, specifying the following:

"1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679.

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When the controller processes a large amount of data concerning the data subject and the data subject exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the data subject specify the data or processing activities to which the

request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the data subject with a remote, direct, and secure access system to the personal data that ensures, permanently, access to all of it. For these purposes, the communication by the controller to the data subject of how they can access this system shall suffice to consider the request for the exercise of the right as addressed. However, the data subject may request from the controller the information referred to in the aspects provided for in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access may be considered repetitive if exercised more than once within a period of six months, unless there is a legitimate reason for it.

4. When the data subject chooses a means other than the one offered that incurs disproportionate costs, the request will be considered excessive, and the data subject will bear the excess costs that their choice entails. In this case, the controller will only be required to satisfy the right of access without undue delay.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD, with particular relevance for the present procedure being the provisions of Article 12 of the GDPR regarding the transparency of information, communication, and modalities for exercising the rights of the data subject, which states the following (the underlining is ours):

“1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication pursuant to Articles 15 to 22 and 34 related to processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller shall facilitate the exercise of the data subject's rights under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act at the request of the data subject in order to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is unable to identify the data subject.

3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary,

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taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month from the receipt of the request, indicating the reasons for the delay. When the data subject submits the request electronically, the information shall be provided electronically where possible, unless the data subject requests that it be provided in another way.

4. If the data controller does not act on the request of the data subject, they shall inform the data subject without delay, and no later than one month after the receipt of the request, of the reasons for their inaction and the possibility of lodging a complaint with a supervisory authority and exercising legal actions.

5. The information provided under Articles 13 and 14, as well as any communication and any action taken under Articles 15 to 22 and 34, shall be free of charge. When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may:

a. charge a reasonable fee based on the administrative costs incurred to provide the information or communication or to take the requested action, or

b. refuse to act on the request.

The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive

nature of the request.

6. Notwithstanding the provisions of Article 11, when the data controller has reasonable doubts regarding the identity of the natural person making the request referred to in Articles 15 to 21, they may request the provision of additional information necessary to confirm the identity of the data subject.

7. The information that must be provided to data subjects under Articles 13 and 14 may be transmitted in combination with standardized icons that allow for a readily visible, intelligible, and clearly legible overview of the intended processing. The icons presented in electronic format shall be mechanically readable.

8. The Commission shall be empowered to adopt delegated acts in accordance with Article 92 to specify the information to be presented through icons and the procedures for providing standardized icons.”

Finally, Article 12 of the LOPDGDD establishes the general provisions regarding the exercise of rights, in the following terms:

“1. The rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679 may be exercised directly or through a legal or voluntary representative.

2. The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party opts for another means.

3. The processor may process, on behalf of the controller, the requests for the exercise of rights made by the affected parties if so established in the contract or legal act that binds them.

4. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party shall rest with the controller.

5. When the applicable laws for certain processing establish a special regime affecting the exercise of the rights provided for in Chapter III of Regulation (EU) 2016/679, the provisions of those laws shall apply.

6. In any case, holders of parental authority may exercise on behalf and representation of minors under fourteen years of age the rights of access, rectification, cancellation, opposition, or any others that may correspond to them in the context of this organic law.

7. The actions carried out by the data controller to address requests for the exercise of these rights shall be free of charge, without prejudice to the provisions of Articles 12.5 and 15.3 of Regulation (EU) 2016/679 and in paragraphs 3 and 4 of Article 13 of this organic law.”

IV

Right to Restriction of Processing

Article 18 of the GDPR regulates the right to restriction of processing, establishing the following:

“1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following conditions is met:

- a. the data subject contests the accuracy of the personal data for a period enabling the controller to verify the accuracy of the data;
- b. the processing is unlawful and the data subject opposes the deletion of personal data and requests instead the restriction of its use;
- c. the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of claims;
- d. the data subject has objected to processing under Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or for the protection of the rights of another natural or legal person or for important public interest reasons of the Union or of a particular Member State.

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3. Any interested party who has obtained the limitation of processing in accordance with paragraph 1 shall be informed by the controller before the lifting of such limitation."

V

Unfulfilled obligation. Attention to requests for the exercise of rights

In this case, the claimant exercised the right to limitation of processing and the right of access to their personal data before the respondent, in relation to the images captured by their video surveillance system from November 2, 2022, at 08:30, until November 5, 2022, the same day, November 5, and should have avoided the deletion of these images, preserving them until the resolution of the amicable or judicial claim.

However, according to the documentation in the file, it is stated in the first response given to the claimant that such images have not been preserved.

In accordance with the available evidence, it is considered that the known facts constitute two infringements, attributable to the respondent, for violation of the provisions of Articles 15 and 18 of the GDPR transcribed in the previous grounds.

VI

Classification and qualification of the infringement

If confirmed, the aforementioned infringements of Articles 15 and 18 of the GDPR could constitute the commission of the infringement classified in Article 83.5.b) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states: that violations of the provisions of the rights of data subjects under Articles 12 to 22 are considered infringements (Art. 83.5.b GDPR). The known facts constitute an infringement, attributable to the respondent, according to the provisions of Articles 15 and 18 of the GDPR transcribed in the previous grounds.

For the purposes of the statute of limitations for the infringements, the attributed infringement prescribes after three years, in accordance with Article 72.k) of the LOPDGDD, which qualifies the following conduct as very serious:

"k) The obstruction or hindrance or repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679."

VII

Warning

Without prejudice to the provisions of Article 83 of the GDPR, this Agency, acting as a supervisory authority, has the power to issue a warning, in accordance with the provisions of the aforementioned Regulation, which states in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

(...)

d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time;

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified time.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

Given the circumstances present in this case, it is deemed appropriate to issue a warning for the infringements of the violated articles.

VIII

Imposition of measures

The infringements in this matter may lead to the imposition on the controller of the obligation to adopt appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time...”.

In this act, the infringements committed and the facts that lead to the violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the type of

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procedures, mechanisms, or concrete instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully understands its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD. However, in this case, regardless of the above, it is appropriate to require the responding party to establish mechanisms within 60 days from the date of enforcement of the final resolution concluding this procedure, to ensure that requests for the exercise of rights are responded to in all cases, considering the retention period of the images, if it is less than one month; and to avoid, in the case of requests for retention and access to the images captured by its surveillance systems, that the images referred to in these requests are deleted before the right is addressed and before the competent authorities can review, if applicable, the decisions that the responding party adopts in this regard. The aforementioned entity must inform this Agency, within the same period, about the measures adopted in compliance with this resolution.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may motivate such conduct to initiate further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO ISSUE A WARNING to HOTEL TURIA, S.A., with NIF A46388245, for the following infringements:

- infringement of Article 15 of the GDPR, classified in Article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.k) of the LOPDGDD.
- infringement of Article 18 of the GDPR, classified in Article 83.5.b) of the same Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.k) of the LOPDGDD.

SECOND: TO ORDER HOTEL TURIA, S.A., with NIF A46388245, that pursuant to Article 58.2.d) of the GDPR, within 60 days from the date this resolution becomes final and enforceable, to prove that it has adopted the necessary measures to align its actions with personal data protection regulations, to the extent expressed in Legal Basis VIII of this resolution; and to provide evidence to this Agency, within the same period, of the measures adopted.

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THIRD: TO NOTIFY this resolution to HOTEL TURIA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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